

# STATE OF NEW YORK

1714--A

2025-2026 Regular Sessions

## IN ASSEMBLY

January 14, 2025

Introduced by M. of A. RIVERA -- read once and referred to the Committee on Real Property Taxation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the real property tax law, in relation to providing an exemption against certain fiber optic cable assessments for municipal fiber optic broadband companies in Erie county

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The real property tax law is amended by adding a new  
2 section 431 to read as follows:

3 § 431. Fiber optic cable in Erie county. 1. For the purposes of this  
4 section the following terms shall have the following meanings:

5 (a) "Municipal fiber optic broadband company" shall mean a local  
6 authority as defined in section two of the public authorities law or a  
7 municipal corporation as defined in section two of the general municipal  
8 law engaged in the construction, operation, marketing and sale of fiber  
9 optic broadband infrastructure and services and located in Erie county.

10 (b) "Municipal fiber optic network" shall mean municipal fiber optic  
11 cable and infrastructure owned by a municipal fiber optic broadband  
12 company.

13 (c) "Municipal fiber optic cable and infrastructure" shall mean fiber  
14 optic cable and related equipment which is owned and installed by or  
15 caused to be installed by a municipal fiber optic broadband company to  
16 transmit, or facilitate the transmission, of broadband data, applica-  
17 tions, and services to end users located in Erie county.

18 2. Notwithstanding any other provision of law to the contrary, all  
19 municipal fiber optic networks and municipal fiber optic cable and  
20 infrastructure owned by a municipal fiber optic broadband company,  
21 whether located on public or private property, and installed for the  
22 purpose of distributing broadband technology and services, shall be  
23 exempt from real property taxes, levies and assessments.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets  
[-] is old law to be omitted.

LBD03025-02-5

1 3. In any contracting for the construction, operation, and management  
2 of a municipal fiber optic network, the municipal broadband company  
3 shall prioritize applicants that have and commit to maintaining high  
4 standards of workplace safety practices, training, certification or  
5 licensure for all relevant workers, and compliance with state and feder-  
6 al workplace protections; ensure that persons, companies, or entities  
7 seeking to contract with the municipal broadband company demonstrate  
8 suitable fiscal, technical, operational, and management capabilities;  
9 ensure that applicants for funding provide certifications as to compli-  
10 ance with relevant safety standards, including the National Electrical  
11 Safety Code; ensure that applicants for funding provide certifications  
12 as to compliance with relevant workplace protections as determined by  
13 the department of labor including the Occupational Safety and Health  
14 Act, the Fair Labor Standards Act, Title VII of the Civil Rights Act of  
15 1964, and New York State labor and employment laws; ensure that appli-  
16 cants for funding submit to the municipal broadband company a workforce  
17 plan which shall include: (a) information regarding whether the  
18 construction workforce will be directly employed or subcontracted and  
19 what entity employs the workforce; (b) the anticipated size of the work-  
20 force required to carry out the proposed work; (c) a description of  
21 plans to maximize use of local or regional workforce; and (d) a  
22 description of the expected workforce safety standards and training to  
23 ensure the project is completed at a high standard. The municipal broad-  
24 band company shall publish workforce plans publicly on its website.

25 4. Municipal fiber optic networks shall be subject to prevailing wage  
26 requirements in accordance with article eight of the labor law.

27 5. The commissioner is hereby authorized and directed to promulgate  
28 rules and regulations necessary to implement the provisions of this  
29 section.

30 § 2. This act shall take effect immediately and shall apply to assess-  
31 ment rolls prepared on the basis of taxable status dates occurring on or  
32 after such date.